

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 1409 By: Crosswhite Hader of the
3 House
4 and
5 Sacchieri of the Senate
6

7 An Act relating to the Oklahoma Open Meeting Act;
amending 25 O.S. 2021, Section 311, as amended by
8 Section 1, Chapter 60, O.S.L. 2024 (25 O.S. Supp.
2024, Section 311), which relates to notices by
9 public bodies; prescribing procedures related to
email distribution systems; and providing an
10 effective date.

11
12
13 AMENDMENT NO. 1. Page 4, line 22, delete before the word "confirm",
the word "annually" and insert the word
14 "biennially"

15 Passed the Senate the 17th day of March, 2026.

16
17
18 Presiding Officer of the Senate

19 Passed the House of Representatives the ____ day of _____,
20 2026.

21
22
23 Presiding Officer of the House
of Representatives
24

1 ENGROSSED HOUSE
2 BILL NO. 1409

By: Crosswhite Hader of the
House

3 and

4 Sacchieri of the Senate
5
6

7 An Act relating to the Oklahoma Open Meeting Act;
8 amending 25 O.S. 2021, Section 311, as amended by
9 Section 1, Chapter 60, O.S.L. 2024 (25 O.S. Supp.
10 2024, Section 311), which relates to notices by
public bodies; prescribing procedures related to
email distribution systems; and providing an
effective date.

11
12
13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 25 O.S. 2021, Section 311, as
15 amended by Section 1, Chapter 60, O.S.L. 2024 (25 O.S. Supp. 2024,
16 Section 311), is amended to read as follows:

17 Section 311. A. Notwithstanding any other provisions of law,
18 all regularly scheduled, continued or reconvened, special or
19 emergency meetings of public bodies shall be preceded by public
20 notice as follows:

21 1. All public bodies shall give notice in writing by December
22 15 of each calendar year of the schedule showing the date, time and
23 place of the regularly scheduled meetings of such public bodies for
24 the following calendar year;

1 2. All state public bodies including, but not limited to,
2 public trusts and other bodies with the state as beneficiary, shall
3 give such notice to the Secretary of State;

4 3. All county public bodies including, but not limited to,
5 public trusts and any other bodies with the county as beneficiary,
6 shall give such notice to the county clerk of the county wherein
7 they are principally located;

8 4. All municipal public bodies including, but not limited to,
9 public trusts and any other bodies with the municipality as
10 beneficiary, shall give such notice to the municipal clerk of the
11 municipality wherein they are principally located;

12 5. All multicounty, regional, areawide or district public
13 bodies including, but not limited to, district boards of education,
14 shall give such notice to the county clerk of the county wherein
15 they are principally located, or if no office exists, to the county
16 clerk of the county or counties served by such public body;

17 6. All governing boards of state institutions of higher
18 education, and committees and subcommittees thereof, shall give such
19 notice to the Secretary of State. All other public bodies covered
20 by the provisions of the Oklahoma Open Meeting Act which exist under
21 the auspices of a state institution of higher education, but a
22 majority of whose members are not members of the institution's
23 governing board, shall give such notice to the county clerk of the
24 county wherein the institution is principally located;

1 7. The Secretary of State and each county clerk or municipal
2 clerk shall keep a record of all notices received in a register open
3 to the public for inspection during regular office hours, and, in
4 addition, shall make known upon any request of any person the
5 contents of the register;

6 8. If any change is to be made of the date, time or place of
7 regularly scheduled meetings of public bodies, then notice in
8 writing shall be given to the Secretary of State or county clerk or
9 municipal clerk, as required herein, not less than ten (10) days
10 prior to the implementation of any such change;

11 9. a. In addition to the advance public notice in writing
12 required to be filed for regularly scheduled meetings,
13 described in paragraph 1 of this subsection, all
14 public bodies shall, at least twenty-four (24) hours
15 prior to such regularly scheduled meetings, display
16 public notice of the meeting by at least one of the
17 following methods:

- 18 (1) by posting information that includes date, time,
19 place and agenda for the meeting in prominent
20 public view at the principal office of the public
21 body or at the location of the meeting if no
22 office exists, or
23 (2) by posting on the public body's Internet website
24 the date, time, place and agenda for the meeting

1 in accordance with Section 3106.2 of Title 74 of
2 the Oklahoma Statutes. Additionally, the public
3 body shall offer and consistently maintain an
4 email distribution system for distribution of
5 such notice of a public meeting required by this
6 subsection, and any person may request to be
7 included without charge, and their request shall
8 be accepted. The emailed notice of a public
9 meeting required by this subsection shall include
10 in the body of the email or as an attachment to
11 the email the date, time, place and agenda for
12 the meeting and it shall be sent no less than
13 twenty-four (24) hours prior to the meeting.
14 Additionally, the public body shall make the
15 notice of a public meeting required by this
16 subsection available to the public in the
17 principal office of the public body or at the
18 location of the meeting during normal business
19 hours at least twenty-four (24) hours prior to
20 the meeting. Public bodies may require persons
21 participating in the email distribution system to
22 annually confirm the request to be included in
23 the email distribution system. If the person
24 does not confirm the request, public bodies may

1 remove that person from the email distribution
2 system. Nothing herein prohibits an individual
3 from participating in an email distribution
4 system from which that individual was previously
5 removed.

6 b. In addition to the notice requirements of this
7 section, all state public bodies, as defined in
8 paragraph 2 of this subsection, shall, at least
9 twenty-four (24) hours prior to regularly scheduled
10 meetings, display public notice of the meeting by:

- 11 (1) posting information that includes date, time,
12 place and agenda for the meeting in prominent
13 public view at the principal office of the public
14 body or at the location of the meeting if no
15 office exists, and
16 (2) posting on the public body's Internet website the
17 date, time, place and agenda for the meeting in
18 accordance with Section 3106.2 of Title 74 of the
19 Oklahoma Statutes;

20 10. The twenty-four (24) hours required in paragraph 9 of this
21 subsection shall exclude Saturdays, Sundays and holidays legally
22 declared by the State of Oklahoma. The posting or distribution of a
23 notice of a public meeting as described in paragraph 9 of this
24 subsection shall not preclude a public body from considering at its

1 regularly scheduled meeting any new business. "New business", as
2 used herein, shall mean any matter not known about or which could
3 not have been reasonably foreseen prior to the time of the posting;

4 11. In the event any meeting is to be continued or reconvened,
5 public notice of such action including date, time and place of the
6 continued meeting, shall be given by announcement at the original
7 meeting. Only matters appearing on the agenda of the meeting which
8 is continued may be discussed at the continued or reconvened
9 meeting;

10 12. Special meetings of public bodies shall not be held without
11 public notice being given at least forty-eight (48) hours prior to
12 the meetings. Such public notice of date, time and place shall be
13 given in writing, in person or by telephonic means to the Secretary
14 of State or to the county clerk or to the municipal clerk by public
15 bodies in the manner set forth in paragraphs 2, 3, 4, 5 and 6 of
16 this subsection. The public body also shall cause written notice of
17 the date, time and place of the meeting to be mailed or delivered to
18 each person, newspaper, wire service, radio station and television
19 station that has filed a written request for notice of meetings of
20 the public body with the clerk or secretary of the public body or
21 with some other person designated by the public body. Such written
22 notice shall be mailed or delivered at least forty-eight (48) hours
23 prior to the special meeting. The public body may charge a fee of
24 up to Eighteen Dollars (\$18.00) per year to persons or entities

1 filing a written request for notice of meetings, and may require
2 such persons or entities to renew the request for notice annually.
3 In addition, all public bodies shall, at least twenty-four (24)
4 hours prior to such special meetings, display public notice of the
5 meeting, setting forth thereon the date, time, place and agenda for
6 the meeting. Only matters appearing on the posted agenda may be
7 considered at the special meeting. Such public notice shall be
8 posted in prominent public view at the principal office of the
9 public body or at the location of the meeting if no office exists.
10 Twenty-four (24) hours prior public posting shall exclude Saturdays,
11 Sundays and holidays legally declared by the State of Oklahoma. In
12 lieu of the public posting requirements of this paragraph, a public
13 body may elect to follow the requirements found in division (2) of
14 subparagraph a of paragraph 9 of this subsection, provided that
15 forty-eight-hour notice is required for special meetings and that
16 the forty-eight-hour requirement shall exclude Saturdays, Sundays
17 and holidays legally declared by the State of Oklahoma;

18 13. In the event of an emergency, an emergency meeting of a
19 public body may be held without the public notice heretofore
20 required. Should an emergency meeting of a public body be
21 necessary, the person calling such a meeting shall give as much
22 advance public notice as is reasonable and possible under the
23 circumstances existing, in person or by telephonic or electronic
24 means; and

1 14. A public body that gives public notice of a meeting for
2 which there will be a videoconference option in accordance with
3 Section 307.1 of this title shall not modify the method of meeting
4 described in the notice prior to the meeting and shall conduct the
5 meeting according to the methods described in the notice. If a code
6 or password is required to access the videoconference meeting, the
7 code or password shall be included in the public notice.

8 B. 1. All agendas required pursuant to the provisions of this
9 section shall identify all items of business to be transacted by a
10 public body at a meeting including, but not limited to, any proposed
11 executive session for the purpose of engaging in deliberations or
12 rendering a final or intermediate decision in an individual
13 proceeding prescribed by the Administrative Procedures Act.

14 2. If a public body proposes to conduct an executive session,
15 the agenda shall:

- 16 a. contain sufficient information for the public to
- 17 ascertain that an executive session will be proposed,
- 18 b. identify the items of business and purposes of the
- 19 executive session, and
- 20 c. state specifically the provision of Section 307 of
- 21 this title authorizing the executive session.

22 SECTION 2. This act shall become effective November 1, 2025.
23
24

1 Passed the House of Representatives the 13th day of March, 2025.

2
3 _____
4 Presiding Officer of the House
of Representatives

5 Passed the Senate the ____ day of _____, 2025.

6
7 _____
8 Presiding Officer of the Senate
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24